Gmail

Kevin Turnage <kdturnage@gmail.com>

(no subject)

Kevin Turnage <kdturnage@gmail.com> Sat, Jun 17, 2023 at 10:36 PM
Draft

--
Hon. Kevin D. Turnage MSN Ed. AMB-BC, NPD-BC

---------- Forwarded message ----------
From: Kevin Turnage <kdturnage@gmail.com>
To: "Genen, Samuel" <SGenen@osc.gov>
Cc:
Bcc:
Date: Wed, 10 May 2023 08:58:06 -0700
Subject: Re: Administrative Leave
I did Thank You

On Wed, May 10, 2023 at 8:55 AM Genen, Samuel <SGenen@osc.gov> wrote:

> Dear Mr. Turnage,
>
> I have now received a copy of the amended directive with the appropriate language. I believe you should have received a copy as well.
>
> Yours sincerely
>
> **Samuel Genen**
>
> Attorney, Investigation & Prosecution Division
>
> U.S. Office of Special Counsel
>
> Oakland Field Office
>
> Email: sgenen@osc.gov
>
> Pronouns: he/him/his
>
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>
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>
> **From:** Genen, Samuel
> **Sent:** Tuesday, May 9, 2023 10:32 AM
> **To:** Kevin Turnage <kdturnage@gmail.com>
> **Subject:** RE: Administrative Leave
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> Dear Mr. Turnage,
>
> I have contacted the agency, and I will hopefully hear back today. I will keep you updated.
>
> Yours sincerely

Samuel Genen

Attorney, Investigation & Prosecution Division

U.S. Office of Special Counsel

Oakland Field Office

Email: sgenen@osc.gov

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In respect of the email with the standard language of (B)(13) I will contact the agency to chase this.

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This is a blatant disregard of Federal directives, laws and legal direction. These are the behaviors that cause me to question the defamation of my character of having security escort me off the property along with the slander and libelous statements made by the agency to shame, and disgrace me. They seem to tend to hold me up to scorn, ridicule, contempt, and are calculated to render me infamous, odious, or ridiculous to my staff and fellow co-workers. Though the agency has not done anything permanent to avoid being able to be held accountable for the retaliation, harassment and discrimination.

I am aware that an employer can be considered to effectively retaliate against an employee by taking actions not directly related to his employment or by causing him harm outside the workplace as stated by the US Supreme Court in *Burlington Northern & Santa Fe Railway Co. v. White.* Additionally the Supreme Court of Virginia set a precedent when they ruled language along with actions are defamatory when the actions are meant to injure one's reputation.

Is there nothing at all that can be done for this continued retaliation, harassment and discrimination or do I have to continue to endure the emotional distress by the agency's extreme and outrageous treatment meant to intentionally cause me severe emotional distress?

On Wed, Apr 12, 2023 at 4:29 PM Kevin Turnage <kdturnage@gmail.com> wrote:

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> Thank you for speaking with me today. It is my understanding since at this time there has not been an official permanent action against me by the agency. The Office of Special Counsel has nothing that it can investigate since the agency has allowed me to return to work in a temporary detail. I am in agreement with my current case being closed with the understanding that if there is a personnel action against me I can refile the case with the Office of Special Counsel at that time. I would request that if it is necessary to refile in the future regarding this instance at the end of the agency's investigation that you be assigned to the case since you are already familiar with what has transpired and have an understanding of the issues. I appreciate your time and energy in thoroughly reviewing the actions and explaining my rights for protected disclosures. If I have any questions about issues surrounding this instance I may reach out for clarity of my rights.
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3. How were those specific policies being violated, please provide details of who was endangering patient safety and how.
4. Please provide details and correspondence of the disclosures you made to your congress person, senator and agency director.

I was not given a reason other than administrative review. I complained about their failure to investigate the hostile work environment, failure to follow IHS Circular 95-11 which states "Fact-finding will begin within 3 workdays" and I had filed a quid pro quo sexual harassment complaint with proof against the Chief Nursing Officer on March 6, 2023. To date I still have not been made aware of the alleged misconduct. All I know is I have been detailed to a position reviewing policies that has been vacant for almost 3 years instead of in the clinic where I can help take care of patients. I was told I would not be returning to the clinic. I reported to the State Medical Board regarding the unsafe practices of tripling and quadrupling certified medical assistants (CMA) causing patient safety issues. I had already reported unsafe environments this caused as had physicians in the clinic. There were documented cases of patients being medicated/vaccinated twice on the same day with the same immunizations due to staff being overburdened and rushed, there is a documented case of COVID booster being administered instead of initial dose as reported by the State of Arizona back to the medical center. The agency kept bringing in more contract physicians even after administration was made aware of it being unsafe to do so. The agency was well aware that there is a CMA shortage across campus with 27 CMA positions being vacant, but they refused to limit access and placed more patients at risk. I was over Primary Care Clinic, Employee Health and Behavioral Health and had reported issues to OSHA regarding the mingling of Employee Health Records and Employee Medical Records which OSHA has specified needed to be corrected before and agency administration has prevented me from implementing processes to correct this issue. I will have to get back to you on the correspondence as the agency escorted me from the property and did not allow me to get my personal files from my office and have refused such requests I have made. I was provided the option of being on campus at 0630 on a Friday morning and would be given 10 minutes to get records they deemed I needed so I am sure much has been destroyed but I will work to get you records. I did contact the IHS director and EEOC at Headquarters to elevate the failure to investigate the sexual harassment according to IHS Circular 95-11, the Indian Health Manual, Indian Health Services anti-harassment policy and that was when I was relieved of my government issued equipment, my identifications, and removed from the property. I was then given a directive not to contact anyone outside of the medical center and threatened discipline if I did. I am attaching said directive and the policy they attached to it which was not violated as I had made everyone at PIMC and the EEO office aware of the situation of the sexual harassment by the Chief Nursing Officer. The policy specifically states "If an individual does not feel the concern/problem has been appropriately addressed, the individual may contact the next level of supervision as appropriate." Which is exactly what occurred with it had been 15 days since reporting with nothing being done just like the hostile work environment claim I filed in December and the 4 others that the nurses have had to continue working in the same hostile environment because the agency refused to investigate or act until I contacted HQ, and they began trying to locate the investigatory file and they could not. I also contacted Congressman Andy Biggs office in February and again in March about the unsafe practices and the repeated excuse of we are waiting on human resources.That may be the case for some things but not all and does not excuse

deliberately putting patients in unsafe situations because the agency cannot correct the deficiencies of the human resource department and it is taking 6-8 months to onboard employees. I also contacted Senators Kelly and Sinema as well since the agency is claiming the HR backlog is due to red tape.

I will try to get dates and copies of communiques once I have access to my government computer and government email at work tomorrow if the agency has restored all my access to my emails and computer drives that is. I did request to be returned to my position of record with no response from the CEO.

I have been told that their are emails showing that the Nurse Recruitment and Retention Specialist the same day I was escorted off property typing up witness statements to an alleged incident and telling employees they had to sign it, fortunately for me one individual stood up and stated that is not what she said to him and was an incorrect statement. Her words to me was they are tampering with witnesses to get rid of you. I will provide the name of the individual once an investigation is initiated as I do not want to risk her being harassed as a corp officer. I will await your response or phone call once the technical issues you are having are rectified.

Very Respectfully,

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On Fri, Apr 7, 2023 at 9:27 AM Genen, Samuel <SGenen@osc.gov> wrote:

> Dear Mr. Turnage,
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> I have had an opportunity to go through your complaint but my MS Teams is at present not permitting outgoing calls. May I ask for the following information:
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> 1. What was the basis given for placing you on Administrative leave?
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From: Kevin Turnage <kdturnage@gmail.com>
Sent: Wednesday, April 5, 2023 3:24 PM
To: Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov>; Genen, Samuel <SGenen@osc.gov>; Patton, George W (IHS/PHX) <George.patton@ihs.gov>; michelle.homer@ihs.gov
Cc: Whistleblower.Coordinator@oig.hhs.gov
Subject: Re: Administrative Leave

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Good Morning,

I am emailing to go on record that this detail violates the Phoenix Indian Medical Center Compliance Plan that states "Current and former federal employees of PIMC shall be protected from retaliatory personnel actions (i.e., non-promotion, disciplinary action, detail/transfer/reassignment, unfavorable performance evaluation, decisions regarding pay, benefits, or awards, or a significant change in duties, responsibilities, or working conditions) taken against them because they made a "protected disclosure." Protected disclosures include information that the employee reasonably believes evidences violation of a law, regulation, or rule, gross mismanagement, gross waste of funds, abuse of authority, or substantial and specific danger to public health or safety." This detail is a blatant retaliation by the agency including telling me I will never be returned to my position of record and treating me different than every other employee at the agency based on what I can only say is unsubstantiated, uncredible and blatantly false claims, including the attempted witness tampering by the agency in the supposed administrative investigation, especially since I have yet been informed of what the alleged allegations against me are, I am treated like a criminal in exile.

This plus the illegal directive from Brandi Benjamin dated March 22, 2023 that states I cannot contact anyone outside of Phoenix to report illegal practices will result in discipline thereby preventing me from exercising my rights though she says it does not but since I cannot go to the supervisors of the individuals in the Phoenix are then it prevents my from escalating issues of non-compliance by PIMC and the PAO thereby violating my rights and Federal Law.

These behaviors by the agency are in direct violation of 5 U.S.C. 2302(b)(8). I wish note that nothing in the No FEAR Act permits an agency to take unfounded disciplinary action against a Federal employee or to violate the procedural rights of a Federal employee which is what the agency is currently doing to an employee of over eleven (11) years. This directive also prevents me from contacting DMEEO at headquarters when issues are not being handled timely and appropriately in contradiction to Indian Health Manual Part 11 Chapter 6 11-6.3C§ (2),(3) and 11-6.4A§(1),(2), the IHS Anti-Discrimination Policy, IHS Circular 95-11 and several other HHS and IHS policies .

It has been 107 days from my initial hostile work environment complaint and the agency is just now assigning it to a third party investigator but I am alleged to have said or done something and am immediately escorted off the property and detailed. I am placed in an area where I do not even have readily available access to a bathroom because there are no men in the office and they do not have a key and when requested I was told it would be at least a week prior to getting it and there is no breakroom either.

I have requested responses from Brandi Benjamin with absolutely no response on my FMLA that was filed in January or any other communications via text or email.

I have had absolutely no response regarding my grievances from Jason White plus he does not even acknowledge me when passing me or if I am in the same room or meeting.

I have emailed you questions and requests in which the you have failed to respond to as well.

The agency and these retaliatory acts have created a more hostile environment than what I was already forced to endure as have the four other nurses in my department, it has caused me to be libeled and slandered by causing rumors to permeate the staff of PIMC to where people are saying different untrue stories about my removal from my position of record.

I am of the impression that since I was detailed to a non-supervisory role that I am also now able to exercise rights under the CBA and the Union. Please confirm that this is the case.

I am making an official request to returned to my position of record immediately, the agencies claim that this is detail is necessary for the efficiency of the service unit and will support the mission of the Agency is not in accordance with the facts available and since this position has been vacant for greater than two years. By the agency detailing me it is placing more patients safety in jeopardy. By taking me out of the clinic and away from patient care thereby, placing my patients at risk in an environment where the doctors, nurses and CMA's are all saying that current staffing is causing major patient safety concerns and patients have received the same medication twice, where given the incorrect medications or were immunized for the same thing twice in the same day or causing Emergency Medical Treatment & Labor Act (EMTALA) violations.

It appears the agency has placed retaliation and discrimination above the safety of our patients in order to protect administrators and punish those that speak up against illegal practices, sexual harassment, hostile work environment and patient safety concerns. Please provide a response to this request in writing at your earliest with approval or denial of my request and detailed written explanations if denied.

My reporting of illegal practices both prior to the detail and following are in accordance with 41USC§4712, EEO Laws and Presidential Policy Directive (PPD-19).

On Fri, Mar 31, 2023 at 11:06AM Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov> wrote:

> Good Morning,
>
> Are you free to meet virtually this afternoon at 2pm to review the attached detail assignment and instructions?
>
> Thank you,
>
> Deb
>
> **Debra Ward Lund, RN-BC, MSN**
>
> Chief Executive Officer (acting)
>
> Phoenix Indian Medical Center
>
> Indian Health Service
>
> 602-574-5244

From: Kevin Turnage <kdturnage@gmail.com>
Sent: Friday, March 31, 2023 9:24 AM
To: Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov>
Subject: Re: Administrative Leave

Good morning,

I am inquiring as to when I should expect to return to my position of record? I was placed on administrative leave on March 21 for up to 10 days according to your memo if I am counting the days correctly that would be have me returning on April 4.2023. Please advise who I would be meeting to pick up my government property such as ID and laptop or if you are extending the administrative leave.

V/

Kevin Turnage

On Tue, Mar 21, 2023 at 12:35 PM Kevin Turnage <kdturnage@gmail.com> wrote:

> In reviewing the memo provided I noticed there is not a reason for this Administrative Leave will. the agency be providing me with a reason?
>
> --
>
> Hon. Kevin D. Turnage MSN Ed. AMB-BC, NHDP-BC

--

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Dear Mr. Turnage,

I have now received a copy of the amended directive with the appropriate language. I believe you should have received a copy as well.

Yours sincerely

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Sent: Wednesday, April 5, 2023 3:24 PM
To: Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov>; Genen, Samuel <SGenen@osc.gov>; Patton, George W (IHS/PHX) <George.patton@ihs.gov>; michelle.homer@ihs.gov
Cc: Whistleblower.Coordinator@oig.hhs.gov
Subject: Re: Administrative Leave

CAUTION: EXTERNAL EMAIL Do not click on links, open attachments, or provide information unless you are sure the message is legitimate and the content is safe.

Good Morning,

I am emailing to go on record that this detail violates the Phoenix Indian Medical Center Compliance Plan that states "Current and former federal employees of PIMC shall be protected from retaliatory personnel actions (i.e., non-promotion, disciplinary action, detail/transfer/reassignment, unfavorable performance evaluation, decisions regarding pay, benefits, or awards, or a significant change in duties, responsibilities, or working conditions) taken against them because they made a "protected disclosure." Protected disclosures include information that the employee reasonably believes evidences violation of a law, regulation, or rule, gross mismanagement, gross waste of funds, abuse of

authority, or substantial and specific danger to public health or safety." This detail is a blatant retaliation by the agency including telling me I will never be returned to my position of record and treating me different than every other employee at the agency based on what I can only say is unsubstantiated, uncredible and blatantly false claims, including the attempted witness tampering by the agency in the supposed administrative investigation, especially since I have yet been informed of what the alleged allegations against me are, I am treated like a criminal in exile.

This plus the illegal directive from Brandi Benjamin dated March 22, 2023 that states I cannot contact anyone outside of Phoenix to report illegal practices will result in discipline thereby preventing me from exercising my rights though she says it does not but since I cannot go to the supervisors of the individuals in the Phoenix are then it prevents my from escalating issues of non-compliance by PIMC and the PAO thereby violating my rights and Federal Law.

These behaviors by the agency are in direct violation of 5 U.S.C. 2302(b)(8). I wish note that nothing in the No FEAR Act permits an agency to take unfounded disciplinary action against a Federal employee or to violate the procedural rights of a Federal employee which is what the agency is currently doing to an employee of over eleven (11) years. This directive also prevents me from contacting DMEEO at headquarters when issues are not being handled timely and appropriately in contradiction to Indian Health Manual Part 11 Chapter 6 11-6.3C§ (2),(3) and 11-6.4A§(1),(2), the IHS Anti-Discrimination Policy, IHS Circular 95-11 and several other HHS and IHS policies .

It has been 107 days from my initial hostile work environment complaint and the agency is just now assigning it to a third party investigator but I am alleged to have said or done something and am immediately escorted off the property and detailed. I am placed in an area where I do not even have readily available access to a bathroom because there are no men in the office and they do not have a key and when requested I was told it would be at least a week prior to getting it and there is no breakroom either.

I have requested responses from Brandi Benjamin with absolutely no response on my FMLA that was filed in January or any other communications via text or email.

I have had absolutely no response regarding my grievances from Jason White plus he does not even acknowledge me when passing me or if I am in the same room or meeting.

I have emailed you questions and requests in which the you have failed to respond to as well.

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I am of the impression that since I was detailed to a non-supervisory role that I am also now able to exercise rights under the CBA and the Union. Please confirm that this is the case.

I am making an official request to returned to my position of record immediately, the agencies claim that this is detail is necessary for the efficiency of the service unit and will support the mission of the Agency is not in accordance with the facts available and since this position has been vacant for greater than two years. By the agency detailing me it is placing more patients safety in jeopardy. By taking me out of the clinic and away from patient care thereby, placing my patients at risk in an environment where the doctors, nurses and CMA's are all saying that current staffing is causing major patient safety concerns and patients have received the same medication twice, where given the incorrect medications or were immunized for the same thing twice in the same day or causing Emergency Medical Treatment & Labor Act (EMTALA) violations.

It appears the agency has placed retaliation and discrimination above the safety of our patients in order to protect administrators and punish those that speak up against illegal practices, sexual

harassment, hostile work environment and patient safety concerns. Please provide a response to this request in writing at your earliest with approval or denial of my request and detailed written explanations if denied.

My reporting of illegal practices both prior to the detail and following are in accordance with 41USC§4712, EEO Laws and Presidential Policy Directive (PPD-19).

On Fri, Mar 31, 2023 at 11:06 AM Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov> wrote:

> Good Morning,
>
> Are you free to meet virtually this afternoon at 2pm to review the attached detail assignment and instructions?
>
> Thank you,
>
> Deb
>
> **Debra Ward Lund, RN-BC, MSN**
>
> Chief Executive Officer (acting)
>
> Phoenix Indian Medical Center
>
> Indian Health Service
>
> 602-574-5244
>
> **From:** Kevin Turnage <kdturnage@gmail.com>
> **Sent:** Friday, March 31, 2023 9:24 AM
> **To:** Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov>
> **Subject:** Re: Administrative Leave
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> V/
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> Kevin Turnage
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> On Tue, Mar 21, 2023 at 12:35 PM Kevin Turnage <kdturnage@gmail.com> wrote:
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Hon. Kevin D. Turnage MSN Ed. AMB-BC, NHDP-BC

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--

Hon. Kevin D. Turnage MSN Ed. AMB-BC, NPD-BC

---------- Forwarded message ----------
From: "Genen, Samuel" <SGenen@osc.gov>
To: Kevin Turnage <kdturnage@gmail.com>
Cc:
Bcc:
Date: Tue, 9 May 2023 14:32:09 +0000
Subject: RE: Administrative Leave

Dear Mr. Turnage,

I have contacted the agency, and I will hopefully hear back today. I will keep you updated.

Yours sincerely

Samuel Genen

Attorney, Investigation & Prosecution Division

U.S. Office of Special Counsel

Oakland Field Office

Email: sgenen@osc.gov

Pronouns: he/him/his

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From: Genen, Samuel
Sent: Tuesday, May 9, 2023 10:20 AM
To: Kevin Turnage <kdturnage@gmail.com>
Subject: RE: Administrative Leave

Dear Mr. Turnage,

In respect of the email with the standard language of (B)(13) I will contact the agency to chase this.

Yours sincerely

Samuel Genen

Attorney, Investigation & Prosecution Division

U.S. Office of Special Counsel

Oakland Field Office

Email: sgenen@osc.gov

Pronouns: he/him/his

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From: Kevin Turnage <kdturnage@gmail.com>
Sent: Tuesday, May 9, 2023 10:14 AM
To: Genen, Samuel <SGenen@osc.gov>
Subject: Re: Administrative Leave

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I wanted to touch base with you, when we spoke last you informed me that the agency "would be" reissuing or rescinding the illegal directive. To date that still has not occurred.

This is a blatant disregard of Federal directives, laws and legal direction. These are the behaviors that cause me to question the defamation of my character of having security escort me off the property along with the slander and libelous statements made by the agency to shame, and disgrace me. They seem to tend to hold me up to scorn, ridicule, contempt, and are calculated to render me infamous, odious, or ridiculous to my staff and fellow co-workers. Though the agency has not done anything permanent to avoid being able to be held accountable for the retaliation, harassment and discrimination.

I am aware that an employer can be considered to effectively retaliate against an employee by taking actions not directly related to his employment or by causing him harm outside the workplace as stated by the U.S. Supreme Court in *Burlington Northern & Santa Fe Railway Co. v. White.* Additionally the Supreme Court of Virginia set a precedent when they ruled language along with actions are defamatory when the actions are meant to injure one's reputation.

Is there nothing at all that can be done for this continued retaliation, harassment and discrimination or do I have to continue to endure the emotional distress by the agency's extreme and outrageous treatment meant to intentionally cause me severe emotional distress?

On Wed, Apr 12, 2023 at 4:29 PM Kevin Turnage <kdturnage@gmail.com> wrote:

> Sir,
>
> Thank you for speaking with me today. It is my understanding since at this time there has not been an official permanent action against me by the agency. The Office of Special Counsel has nothing that it can investigate since the agency has allowed me to return to work in a temporary detail. I am in agreement with my current case being closed with the understanding that if there is a personnel action against me I can refile the case with the Office of Special Counsel at that time. I would request that if it is necessary to refile in the future regarding this instance at the end of the agency's investigation that you be assigned to the case since you are already familiar with what has transpired and have an understanding of the issues. I appreciate your time and energy in thoroughly reviewing the actions and explaining my rights for protected disclosures. If I have any questions about issues surrounding this instance I may reach out for clarity of my rights.
>
> V/r
>
> Hon. Kevin D. Turnage MSN Ed. AMB-BC, NPD-BC
>
> On Mon, Apr 10, 2023 at 5:00 AM Genen, Samuel <SGenen@osc.gov> wrote:
>
>> Dear Mr. Turnage,
>>
>> Thank you for r email, I am unsure if I have an answer to the third question. Do I understand it correctly that you allege that patient safety was at risk due to a shortage of CMA and that due to this patients were administered incorrect doses of vaccines or medication? When did you see this occur can you give specific examples of how many times this occurred and how you became aware of it?
>>
>> Am I correct in understanding that your disclosure caused the hostile work environment or did it exist prior to your disclosure?
>>
>> Yours sincerely
>>
>> **Samuel Genen**
>>
>> Attorney, Investigation & Prosecution Division
>>
>> U.S. Office of Special Counsel
>>
>> Oakland Field Office
>>
>> Email: sgenen@osc.gov
>>
>> Pronouns: he/him/his
>>
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>>
>> **From:** Kevin Turnage <kdturnage@gmail.com>
>> **Sent:** Monday, April 10, 2023 12:37 AM

To: Genen, Samuel <SGenen@osc.gov>
Subject: Re: Administrative Leave

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1. What was the basis given for placing you on Administrative leave?
2. What specific policies were being violated by the agency?
3. How were those specific policies being violated, please provide details of who was endangering patient safety and how.
4. Please provide details and correspondence of the disclosures you made to your congress person, senator and agency director.

I was not given a reason other than administrative review. I complained about their failure to investigate the hostile work environment, failure to follow IHS Circular 95-11 which states "Fact-finding will begin within 3 workdays" and I had filed a quid pro quo sexual harassment complaint with proof against the Chief Nursing Officer on March 6, 2023. To date I still have not been made aware of the alleged misconduct. All I know is I have been detailed to a position reviewing policies that has been vacant for almost 3 years instead of in the clinic where I can help take care of patients. I was told I would not be returning to the clinic. I reported to the State Medical Board regarding the unsafe practices of tripling and quadrupling certified medical assistants (CMA) causing patient safety issues. I had already reported unsafe environments this caused as had physicians in the clinic. There were documented cases of patients being medicated/vaccinated twice on the same day with the same immunizations due to staff being overburdened and rushed, there is a documented case of COVID booster being administered instead of initial dose as reported by the State of Arizona back to the medical center. The agency kept bringing in more contract physicians even after administration was made aware of it being unsafe to do so. The agency was well aware that there is a CMA shortage across campus with 27 CMA positions being vacant, but they refused to limit access and placed more patients at risk. I was over Primary Care Clinic, Employee Health and Behavioral Health and had reported issues to OSHA regarding the mingling of Employee Health Records and Employee Medical Records which OSHA has specified needed to be corrected before and agency administration has prevented me from implementing processes to correct this issue. I will have to get back to you on the correspondence as the agency escorted me from the property and did not allow me to get my personal files from my office and have refused such requests I have made. I was provided the option of being on campus at 0630 on a Friday morning and would be given 10 minutes to get records they deemed I needed so I am sure much has been destroyed but I will work to get you records. I did contact the IHS director and EEOC at Headquarters to elevate the failure to investigate the sexual harassment according to IHS Circular 95-11, the Indian Health Manual, Indian Health Services anti-harassment policy and that was when I was relieved of my government issued equipment, my identifications, and removed from the property. I was then given a directive not to contact anyone outside of the medical center and threatened discipline if I did. I am attaching said directive and the policy they attached to it which was not violated as I had made everyone at PIMC and the EEO office aware of the situation of the sexual harassment by the Chief Nursing Officer. The policy specifically states "If an individual does not feel the concern/problem has been appropriately addressed, the individual may contact the next level of supervision as appropriate." Which is exactly what occurred when it had been 15 days since reporting with nothing being done just like the hostile work environment claim I filed in December and the 4 others that the nurses have had to continue working in the same hostile environment because the agency refused to investigate or act until I contacted HQ, and they began trying to locate the investigatory file and they could not. I also contacted Congressman Andy Biggs office in February and again in March about the unsafe practices and the repeated excuse of we are waiting on human resources.That may be the case for some things but not all and does not excuse deliberately putting patients in unsafe situations because the agency cannot correct the deficiencies of the human resource department and it is taking 6-8 months to onboard employees. I also contacted Senators Kelly and Sinema as well since the agency is claiming the HR backlog is due to red tape.

I will try to get dates and copies of communiques once I have access to my government computer and government email at work tomorrow if the agency has restored all my access to my emails and computer drives that is. I did request to be returned to my position of record with no response from the CEO.

I have been told that their are emails showing that the Nurse Recruitment and Retention Specialist the same day I was escorted off property typing up witness statements to an alleged incident and telling employees they had to sign it, fortunately for me one individual stood up and stated that is not what she said to him and was an incorrect statement. Her words to me was they are tampering with witnesses to get rid of you. I will provide the name of the individual once an investigation is initiated. I do not want to risk her being harassed as a corp officer. I will await your response or phone call once the technical issues you are having are rectified.

Very Respectfully,

Kevin Turnage

On Fri, Apr 7, 2023 at 9:27 AM Genen, Samuel <SGenen@osc.gov> wrote:

Dear Mr. Turnage,

I have had an opportunity to go through your complaint but my MS Teams is at present not permitting outgoing calls. May I ask for the following information:

1. What was the basis given for placing you on Administrative leave?
2. What specific policies were being violated by the agency?
3. How were those specific policies being violated, please provide details of who was endangering patient safety and how.
4. Please provide details and correspondence of the disclosures you made to your congress person, senator and agency director.

I look forward to hearing from you and I will arrange to call as necessary when my MS teams is working again.

Yours sincerely

Samuel Genen

Attorney, Investigation & Prosecution Division

U.S. Office of Special Counsel

Oakland Field Office

Email: sgenen@osc.gov

Pronouns: he/him/his

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Hon. Kevin D. Turnage MSN Ed. AMB-BC, NHDP-BC

--

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--

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...

[Message clipped] View entire message

63 attachments

- **Re: Administrative Leave.eml**
  67K
- **RE: Administrative Leave.eml**
  111K
- **RE: Administrative Leave.eml**
  107K
- **RE: Administrative Leave.eml**
  100K
- **Re: Administrative Leave.eml**
  56K
- **Re: Administrative Leave.eml**
  52K
- **FW: KT.eml**
  36K
- **FW: KT.eml**
  30K
- **Re: Administrative Leave.eml**
  50K
- **RE: Administrative Leave.eml**
  101K

RE: Administrative Leave.eml
101K

Re: Administrative Leave.eml
37K

Re: Administrative Leave.eml
56K

Memo Style Position statement 031723.pdf
137K

Memo Style Patient Safety from Director Tso.pdf
232K

Memo Style Patient safety.pdf
208K

Memo Style Patient safety 121222.pdf
218K

Memo Style Patient Safety 031723.pdf
189K

Re: Administrative Leave.eml
1401K

RE: Administrative Leave.eml
81K

Turnage Kevin - Letter of Directive - 3-22-23.pdf
309K

Kevin Turnage - Detail April 2023.pdf
298K

Adobe Scan Mar 21, 2023.pdf
1454K

Re: Administrative Leave.eml
2863K

RE: Administrative Leave.eml
52K

RE: Request.eml
18K

PIMC-TURNAGEKEVIN-2022PMAP Signed.pdf
1210K

Kevin Turnage 2022 PMAP Comments.pdf
416K

FW: Step 2 Grievance.eml
2271K

Re: Administrative Leave.eml
21K

Turnage Kevin - Stage 2 Admin Grievance Response - 4-5-23.pdf
210K

PIMC-TURNAGE,KEVIN-2022PMAP.pdf
852K

RE: Step 2 Grievance.eml
1494K

Tonie Greve Question response.docx
19K

RE: Case Number: HHS-IHS-MI-PHX-2023-0006 (((Information Request #2))).eml
50K

RE: Administrative Leave.eml
28K

invite.ics
5K

Kevin Turnage - Detail April 2023.pdf
298K

Fwd: Reporting Instructions.eml
424K

Kevin Turnage - Detail April 2023.pdf
311K

Re: Administrative Leave.eml
433K

Kevin Turnage - Detail April 2023.pdf
298K

Reporting Instructions.eml
436K

Kevin Turnage - Detail April 2023.pdf
298K

RE: Administrative Leave.eml
430K

Re: Administrative Leave.eml
4K

Re: Canceled: Administrative Investigation.eml
18K

Re: Step 2 Grievance.eml
15K

Fwd: Interview - March 28 @ 1pm.eml
23K

Re: Interview - March 28 @ 1pm.eml
21K

RE: Interview - March 28 @ 1pm.eml
23K

Re: Interview - March 28 @ 1pm.eml
5K

Interview - March 28 @ 1pm.eml
16K

Step. 1 Memo.pdf
460K

Fwd: Step 2 Grievance.eml
645K

Step. 1 Memo.pdf
460K

Fwd: Step 2 Grievance.eml
648K

Step. 1 Memo.pdf
460K

Step 2 Grievance.eml
642K

Administrative Leave.eml
12K

RE: Step 1 Grievance.eml
36K

Administrative Leave.eml
2K

Step 1 Grievance.eml
2K